

KABC010253022023



**IN THE COURT OF XX ADDITIONAL CITY CIVIL &
SESSIONS JUDGE, BENGALURU CITY (CCH-32)**

PRESENT:

Smt. Shirin Javeed Ansari, B.A.,LL.B(Hon`s), LL.M.
C/c XX Addl. City Civil and Sessions Judge
City Civil Court, Bengaluru (CCH-32)

Dated this the 13th day of August, 2026

Ex. No.2460/2023

Decree M/s. Surabhi Chits Ltd.,
Holder:

- Vs -

Judgment Saveetha N. and Another
Debtors:

PARTIES IN I.A

**Applicant/
Decree Holder:** M/s. Surabhi Chits Ltd.,

Vs

**Opponent/
Judgment Debtors:** Saveetha N. and Another

i.	Provision under which the applications are filed	I.A. filed under Section 39, 40 read with Section 151 of C.P.C.
ii.	Relief sought for	I.A. filed by the DHR praying to transfer the above Execution Petition to the Hon'ble Senior Civil Judge and JMFC Court, Devanahalli.
iii.	The date on which the application is filed	15.09.2023
iv.	Number of the applications	One
v.	The date on which the objections are filed by different opponents	Order sheet dt.10.06.2026 show that JDR No.1 not filed their objections to I.A.No.1
vi.	The date on which the orders were passed on the said application	13.08.2026

ORDER ON I.A.No.I

The Decree Holder has filed the present application under Sections 39 and 40 read with Section 151 of the Code of Civil Procedure, 1908, seeking transfer of the present Execution Petition to the Court of the Senior Civil Judge and JMFC, Devanahalli, on the ground that the Judgment Debtors are residing within the territorial jurisdiction of the said Court and the properties furnished as security are also situated within its jurisdiction.

2. The application is supported by the affidavit of Sri. Prakash B.A., S/o. Late Ananthaiah B.V., aged about

56 years, who claims to be the Power of Attorney Holder of the Decree Holder. It is specifically averred that Judgment Debtor Nos.1 to 3 are residing at Devanahalli and that the properties belonging to the Judgment Debtors, which are sought to be proceeded against for satisfaction of the decree, are also situated within the jurisdiction of the Senior Civil Judge and JMFC Court, Devanahalli. It is further stated that continuation of the execution proceedings before this Court would cause practical difficulty in effecting notices, warrants and other coercive processes against the Judgment Debtors and in proceeding against the properties situated within the territorial jurisdiction of the Devanahalli Court.

3. It is significant to note that no objections have been filed by the Judgment Debtors to the present application. Thus, the factual assertion regarding the residence of the Judgment Debtors and the situs of the properties remains uncontroverted on the record.

4. Heard the arguments of both sides. Perused the application, affidavit and the material available on record.

5. On the basis of the pleadings, the following

points arise for my consideration.

1) Whether the Decree Holder has made out sufficient grounds for transfer of the present Execution Petition to the Court of the Senior Civil Judge and JMFC, Devanahalli, under Sections 39 and 40 read with Section 151 of the Code of Civil Procedure?

2) What order?

6. My finding to the above points are as under:

Point No.1 : In the **Affirmative**

Point No.2 : As per final order

for the following;

R E A S O N S

7. **POINT NO.1:-** At the outset, it is necessary to bear in mind the scheme of the Code relating to execution of decrees. Section 38 of the Code provides that a decree may be executed either by the Court which passed the decree or by the Court to which it is sent for execution. Section 39, in turn, enables the Court which passed the decree, upon an application by the Decree Holder, to send the decree for execution to another Court of competent jurisdiction in the circumstances enumerated therein.

8. Section 39(1)(a) contemplates transfer where the person against whom the decree has been passed actually and voluntarily resides, carries on business or personally works for gain within the local limits of the jurisdiction of the transferee Court. Section 39(1)(b) further contemplates transfer where the Judgment Debtor has property within the jurisdiction of the transferee Court and the property available within the jurisdiction of the Court which passed the decree is insufficient for satisfaction of the decree. Section 39(1)(c) deals with decrees relating to sale or delivery of immovable property situated outside the local jurisdiction of the Court which passed the decree. Clause (d) confers a wider discretionary power where, for any other reason recorded in writing, the Court considers that the decree ought to be executed by another competent Court.

9. The statutory scheme therefore makes it clear that execution is not intended to be confined, as a matter of rigid procedural formality, to the Court which originally passed the decree when the effective execution of the decree requires intervention within the territorial jurisdiction of another competent Court. The very purpose

of Section 39 is to facilitate effective execution and to ensure that the decree-holder is not compelled to undergo avoidable procedural difficulties when the Judgment Debtor or the property against which execution is sought is situated elsewhere.

10. The Hon'ble Supreme Court has explained the interplay between Sections 38 and 39 of the Code and has reiterated that Section 39 provides the statutory mechanism for transmission of a decree to another competent Court for execution. The provisions are intended to facilitate effective execution of the decree in accordance with the territorial and subject-matter jurisdiction of the executing Court.

11. The expression "Court of competent jurisdiction" occurring in Section 39 is also of considerable significance. Section 39(3) provides that, for purposes of transfer, a Court shall be deemed to be a Court of competent jurisdiction if, at the time of making the application for transfer, such Court would have jurisdiction to try the suit in which the decree was passed. Thus, the transferee Court must not merely be a convenient forum; it

must possess the requisite jurisdiction in accordance with the statutory scheme.

12. In the present case, the Decree Holder has specifically pleaded that the Judgment Debtors are residing within the jurisdiction of the Senior Civil Judge and JMFC Court, Devanahalli. It is further stated that the properties belonging to the Judgment Debtors and furnished as security are also situated within the territorial jurisdiction of the said Court. These assertions have not been controverted by the Judgment Debtors. There is, therefore, no material before the Court to disbelieve the specific averments made in support of the application.

13. The situation becomes particularly significant because the object of execution proceedings is not merely to keep the decree alive on the docket of the Court, but to translate the adjudication embodied in the decree into an effective and enforceable result. A decree-holder who has successfully secured a decree is entitled to take effective steps for its execution, subject, of course, to the rights and protections available to the Judgment Debtor under law.

14. The execution of a decree is consequently

required to be approached from the standpoint of efficacy rather than procedural inconvenience. Where the Judgment Debtor resides and the property against which execution is sought is situated within the territorial jurisdiction of another competent Court, transmission of the decree to such Court can advance rather than obstruct the administration of justice.

15. The Hon'ble Supreme Court has also recognised that Section 39 operates as an enabling provision intended to facilitate execution by a competent Court in circumstances contemplated by the provision. The provision embodies an element of procedural expediency and convenience so that the decree can be effectively executed against the person or property falling within the jurisdiction of the transferee Court.

16. Another important circumstance which weighs with this Court is that the Judgment Debtors have not opposed the present application. The absence of objections by itself does not confer jurisdiction upon a Court which otherwise lacks it; nevertheless, where the statutory conditions are otherwise satisfied, the absence of

opposition assumes significance in assessing whether the proposed transfer would cause prejudice to the Judgment Debtors. In the present case, no such prejudice has been demonstrated.

17. On the contrary, transfer of the execution proceedings to the Court within whose territorial jurisdiction the Judgment Debtors reside and the secured properties are situated would facilitate service of process, attachment, inspection, identification and, if otherwise warranted in law, further proceedings against the properties. It would also obviate unnecessary procedural impediments in securing the presence of the Judgment Debtors and in enforcing the decree against assets situated within the territorial jurisdiction of the transferee Court.

18. At the same time, this Court is conscious that transfer under Section 39 is not to be ordered mechanically merely because a party seeks greater convenience. The Court is required to examine whether the statutory requirements are satisfied and whether the transferee Court is competent to execute the decree. In the present case, the residence of the Judgment Debtors and situs of

the properties are specifically pleaded to be within Devanahalli jurisdiction, and those averments remain unchallenged. The circumstances thus fall within the purview of Section 39(1), particularly clauses (a), (b) and, in the alternative, clause (d), subject to the precise mode of execution sought to be adopted.

19. It is also pertinent to observe that transfer of the execution petition does not amount to reopening, reviewing or modifying the decree. The transferee Court would execute the decree as it stands, within the parameters of the decree and the provisions governing execution. The rights of the Judgment Debtors to raise objections permissible in execution, if any, are not extinguished merely because the decree is transferred to another competent Court. Section 42 of the Code further recognises that the Court executing a decree sent to it possesses the same powers in executing the decree as if the decree had been passed by itself, subject to the limitations prescribed by the Code. Thus, the proposed transfer does not cause any substantive prejudice to the Judgment Debtors. Rather, it ensures that the execution

proceedings are conducted by a Court having appropriate territorial nexus with the persons and properties against whom and against which execution is sought.

20. The power under Section 151 of the Code also reinforces the inherent jurisdiction of the Court to pass such procedural orders as may be necessary to secure the ends of justice and prevent abuse of the process of Court. In the present case, however, the order of transfer is principally traceable to the express statutory mechanism contained in Sections 38 and 39 of the Code, while Section 151 operates in aid of securing the ends of justice.

21. Having regard to the totality of the circumstances, this Court is of the considered opinion that the Decree Holder has established sufficient grounds for transmission of the decree for execution before the competent Court at Devanahalli. The proposed transfer would neither enlarge the decree nor alter the rights of the parties. It would merely place the execution proceedings before the competent Court within whose territorial jurisdiction the Judgment Debtors and the properties sought to be proceeded against are stated to be situated.

Accordingly, the application deserves to be allowed. Hence,

Point No.1 is answered in the **Affirmative**.

22. **POINT NO.2:-** In view of the reasons assigned on Point No.1, I proceed to pass the following;

ORDER

The I.A. No.1 filed by the Decree Holder under Sections 39 and 40 read with Section 151 of the Code of Civil Procedure, 1908, is hereby **allowed**.

The present Execution Petition is ordered to be transferred to the Court of the Senior Civil Judge and JMFC, Devanahalli, for execution of the decree in accordance with law.

The office is directed to prepare and transmit the decree and the entire execution records, in accordance with the procedure prescribed under the Code, to the said Court forthwith.

The transferee Court shall proceed with the execution petition in accordance with law and shall have such powers as are conferred upon an executing Court under the Code of Civil Procedure.

The Decree Holder shall take necessary steps before the transferee Court for further execution

of the decree.

It is made clear that this order shall not be construed as expressing any opinion on the merits of any particular mode of execution, attachment, sale or other relief which may hereafter be sought by the Decree Holder. Such matters shall be considered by the transferee Court independently and in accordance with law.

(Dictated to the Stenographer Grade-I directly on computer, typed by him, corrected, signed and pronounced by me in open court on this the 13th day of August, 2026)

(Shirin Javeed Ansari)

C/c XX Addl.C.C. & Sessions Judge,
Bengaluru.